

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Juan Arango	Team: Squad #9	CCRB Case #: 202102359	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 04/04/2021 7:10 PM, Sunday, 04/04/2021 8:00 PM	Location of Incident: At East 165th Street and Longfellow Avenue; At § 87(2)(b)	Precinct: 41	18 Mo. SOL 10/4/2022	EO SOL 10/4/2022	
Date/Time CV Reported Sun, 04/04/2021 2:51 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/13/2021 12:25 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Osmairys Avila	26631	966949	041 PCT
2. PO Anthony Rivera	09291	962057	041 PCT
3. PO Gloria Cevallos	17457	958390	041 PCT
4. PO Sandor Burgos	09388	968298	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A. PO Sandor Burgos	Abuse: At East 165th Street and Longfellow Avenue in the Bronx, Police Officer Sandor Burgos forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
B. PO Gloria Cevallos	Abuse: At East 165th Street and Longfellow Avenue in the Bronx, Police Officer Gloria Cevallos forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
C. PO Sandor Burgos	Force: At East 165th Street and Longfellow Avenue in the Bronx, Police Officer Sandor Burgos used physical force against § 87(2)(b)	§ 87(2)(b)
D. PO Sandor Burgos	Force: Outside of § 87(2)(b) in the Bronx, Police Officer Sandor Burgos used physical force against § 87(2)(b)	§ 87(2)(b)
E. PO Sandor Burgos	Force: Inside § 87(2)(b) in the Bronx, Police Officer Sandor Burgos used physical force against § 87(2)(b)	§ 87(2)(b)
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On April 4, 2021, § 87(2)(b) filed the following complaint with IAB generating original log #21-07796. This complaint was received at the CCRB on April 13, 2021, under log number 21-8055.

On April 4, 2021, at approximately 7:10 p.m., PO Sandor Burgos, PO Gloria Cevallos, PO Osmairys Avila and PO Anthony Rivera, all the 41st Precinct, responded to East 165th Street and Longfellow Avenue in the Bronx, after § 87(2)(b) made multiple 911 calls. PO Burgos and PO Cevallos were the primary officers while PO Avila and PO Rivera the backup officers. After arriving, PO Burgos and PO Cevallos made the decision to remove § 87(2)(b) to the hospital and requested an ambulance (**Allegations A and B: Abuse of Authority – Forcible Removal to Hospital, § 87(2)(g)**). After EMS arrived, PO Burgos allegedly grabbed § 87(2)(b) by the right arm and began to push him through the side door of the ambulance (**Allegation C: Force – Physical Force, § 87(2)(g)**). § 87(2)(b) was then removed to § 87(2)(b).

Upon arriving at § 87(2)(b) at approximately 8:00 p.m., PO Burgos allegedly grabbed § 87(2)(b) by the handcuffs with his right hand and by the back of his neck with his left hand to get § 87(2)(b) out of the ambulance, and then allegedly pushed § 87(2)(b) towards the entrance of the hospital (**Allegation D: Force – Physical Force, § 87(2)(g)**). After PO Burgos entered the emergency room of § 87(2)(b) PO Burgos approached a gurney with § 87(2)(b) PO Burgos then allegedly threw § 87(2)(b) with force against the gurney (**Allegation E: Force – Physical Force, § 87(2)(g)**). At the end, PO Burgos left the hospital, and the hospital staff took charge of § 87(2)(b)'s care.

No arrests were made, or summonses issued.

The investigation requested Body Worn Camera footage (BWC), but this request yielded negative results (**Board Reviews 01 and 02**).

The investigation obtained the police radio communications in regard to the last ICADs created for the 911 calls made by § 87(2)(b) between 6:18:16 p.m. and 9:21:33 p.m. (**Board Review 03**)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

On September 9, 2021, the case was reassigned from Investigator Nadia Sanchez to Investigator Matt Donaghy. On October 26, 2021, this case was reassigned from Inv. Donaghy to Investigator Juan Arango.

Findings and Recommendations

Allegation (A) Abuse of Authority: At East 165th Street and Longfellow Avenue in the Bronx, Police Officer Sandor Burgos forcibly removed § 87(2)(b) to the hospital.

Allegation (B) Abuse of Authority: At East 165th Street and Longfellow Avenue in the Bronx, Police Officer Gloria Cevallos forcibly removed § 87(2)(b) to the hospital.

It is undisputed that § 87(2)(b) made multiple 911 calls on April 4, 2021, from approximately noon until 6:49 p.m. These “jobs” were divided into multiple ICAD numbers connected to two different locations: § 87(2)(b) and East 165th Street and Longfellow Avenue in the Bronx. The two locations are only one block apart. All these “jobs” were closed either unnecessary or unfounded by the units who responded. Finally, it is undisputed that PO Burgos and PO Cevallos responded to § 87(2)(b) final 911 call, as sector 41D (**Board Reviews 04 and 05**).

It is also undisputed that § 87(2)(b) was under the influence of alcohol at the time of his removal to the hospital.

§ 87(2)(b) stated that he had called 911 approximately six times; during which, he asked for assistance to report that his belongings were stolen from inside his vehicle (**Board Review 06**). § 87(2)(b) also called to report that he had been assaulted and robbed a week prior to this incident; during which, he sustained injuries. PO Burgos and PO Cevallos arrived at the incident location and informed him that the report he wanted to make would be considered assault. Ultimately, PO Burgos told him that he was going to call an ambulance for him (**Board Review 07**). § 87(2)(b) asked PO Burgos why he was going to call an ambulance if he felt well, and PO Burgos said that he was calling 911 too much. After the ambulance arrived at the scene, § 87(2)(b) was placed in handcuffs and taken to § 87(2)(b). PO Burgos accompanied § 87(2)(b) inside the ambulance. § 87(2)(b) did not make a threat to harm himself or anyone else during this incident. (**Board Review 08**).

During his CCRB interview, PO Burgos explained that when he approached § 87(2)(b) was intoxicated and acting irate (**Board Review 10**). § 87(2)(b) had a loud voice and tone at the time. PO Burgos determined that § 87(2)(b) was intoxicated because of the smell of liquor and because of his irate demeanor which he believed a normal person would not have. PO Burgos did not remember the content of the conversation with § 87(2)(b) at the time. At some point, given that PO Burgos and PO Cevallos observed that § 87(2)(b) was very intoxicated and irate, either PO Burgos or PO Cevallos requested EMS to the scene. PO Burgos did not remember how long after they first arrived at the scene, they decided to call EMS. When asked if any other factor led them to request EMS for § 87(2)(b) other than § 87(2)(b) being intoxicated and irate, PO Burgos said no. When asked if he ever believed § 87(2)(b) to be a threat to himself, PO Burgos said yes and explained that § 87(2)(b) was very intoxicated, acting disorderly and causing nuisance to a lot of people in the area.

Furthermore, when PO Burgos was asked if he ever believed § 87(2)(b) to be a threat to others, he said yes and explained that his irate demeanor and what he previously stated indicated to him that he was a threat to others (**Board Review 10**). PO Burgos did not remember if any other civilians were present during this incident. PO Burgos did not know if there were any individuals in the immediate vicinity at the time. PO Burgos did not remember if § 87(2)(b) was interacting with any civilians when he first arrived at the location. PO Burgos did not remember if § 87(2)(b) ever made any verbal threat to anyone or if he ever made any physical threat against anyone. PO Burgos confirmed there was an AIDED report prepared for § 87(2)(b) and provided the number as § 87(2)(b). PO Burgos confirmed the name on the report appeared as § 87(2)(b) and explained this is the name § 87(2)(b) provided to EMS.

During her CCRB interview, PO Cevallos stated that she did not recall how her interaction with § 87(2)(b) started but remembered that § 87(2)(b) was belligerent and irate (**Board Review 11**). She explained that he was being loud, smelled like liquor and was swaying. PO Cevallos did not recall what § 87(2)(b) was saying at the time or what § 87(2)(b) was being belligerent and irate about. At some point, either she or PO Burgos requested EMS to the scene. § 87(2)(b) was placed in handcuffs and then placed into the ambulance. PO Cevallos explained that § 87(2)(b) was sent to the hospital because he was being belligerent, irate, loud and smelled like liquor. When asked if there were any other factors that led them to remove § 87(2)(b) to the hospital, PO Cevallos said no. When asked if she ever believed § 87(2)(b) to be a danger to himself or to others, PO Cevallos said yes and explained that he was smelling like liquor, acting belligerent, and was “standing on the block.” PO Cevallos did not recall if § 87(2)(b) was standing on the street or on the sidewalk during their interaction. When asked to explain how § 87(2)(b) “standing on the block” indicated to her that he was a threat to himself, PO Cevallos explained that anything could happen such as § 87(2)(b) walk into a vehicle because he was highly intoxicated. When asked if she ever believed PO § 87(2)(b) to be a threat to others, PO Cevallos said yes and restated that § 87(2)(b) was loud, belligerent, and irate. PO Cevallos said that she did not remember if § 87(2)(b)

ever made a specific verbal threat to anyone of any physical action that she interpreted as threatening.

The investigation interviewed PO Avila and PO Rivera; however, neither officer had an independent recollection of this incident (**Board Reviews 13 and 14**). Both acknowledged responding to this incident, but they only knew this because of PO Avila's memo book entries.

The investigation obtained AIDED #§ 87(2)(b), and the report matched the incident date, time, and location (**Board Review 12**). This report was prepared and submitted by PO Cevallos. It listed § 87(2)(b) as an emotionally disturbed person that was removed to § 87(2)(b). PO Cevallos marked that § 87(2)(b) was under suspected influence of alcohol. None of the other categories such as "attempt to physical harm to self/others," "verbally threatened others," "spoke of harming self or others," "placed self in a dangerous situation," or "physically threatened to others" were marked. PO Cevallos noted under the "Details" section that § 87(2)(b) was "intox and irate."

The investigation obtained the FDNY Prehospital Care Report (PCR) prepared by EMS on April 4, 2021 (**Board Review 15**). On page 2, under the initial neurological assessment made by EMS, § 87(2)(b)'s mental status is noted as "normal."

Patrol Guide Procedure 221-13 (**Board Review 16**) states that an officer must take into protective custody and have removed to the hospital in an ambulance, any person who appears to be mentally ill or temporarily deranged (EDP) and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others.

§ 87(2)(g)

Allegation (C) Force: At East 165th Street and Longfellow Avenue in the Bronx, Police Officer Sandor Burgos used physical force against § 87(2)(b)

§ 87(2)(b) explained that after the ambulance arrived, PO Burgos placed his hand on the back of his neck and pushed him approximately three times while he entered the ambulance (**Board Review 07**). § 87(2)(b) told PO Burgos not to push him because he could walk on his own. Although PO Burgos pushed § 87(2)(b), PO Burgos and § 87(2)(b) did not have any struggle. After § 87(2)(b) entered the ambulance, PO Burgos placed him in handcuffs.

During his CCRB interview, PO Burgos did not remember what happened after the ambulance arrived (**Board Review 10**). At some point, § 87(2)(b) was placed into the ambulance. PO Burgos did not remember how § 87(2)(b) entered the ambulance. PO Burgos did not remember if § 87(2)(b) was placed in handcuffs but assumed he was since he was irate and belligerent. PO Burgos did not recall placing § 87(2)(b) in handcuffs after he entered the ambulance. PO Burgos did not remember pushing § 87(2)(b) as he entered the ambulance and denied using any type of force against § 87(2)(b).

During her CCRB interview, PO Cevallos explained that after EMS arrived, § 87(2)(b) was placed in handcuffs and then placed into the ambulance (**Board Review 11**). PO Cevallos did not recall how § 87(2)(b) entered the ambulance. PO Cevallos did not recall seeing PO Burgos use any type of force against § 87(2)(b).

The investigation interviewed PO Avila and PO Rivera; however, neither officer had an independent recollection of this incident (**Board Reviews 13 and 14**). Both acknowledged responding to this incident, but they only knew this because of PO Avila's memo book entries.

§ 87(2)(g)

Allegation (D) Force: Outside of § 87(2)(b) in the Bronx, Police Officer Sandor Burgos used physical force against § 87(2)(b)

Allegation (E) Force: Inside § 87(2)(b) in the Bronx, Police Officer Sandor Burgos used physical force against § 87(2)(b)

§ 87(2)(b) explained that upon arriving at § 87(2)(b), PO Burgos allegedly grabbed him by the handcuffs with his right hand and by the back of his neck with his left hand (**Board Review 07**). PO Burgos got § 87(2)(b) off the ambulance in that manner, then began to push him towards the entrance of the hospital. In response, § 87(2)(b) told PO1 to let go of him, but PO Burgos ignored him. PO Burgos and § 87(2)(b) entered the hospital and walked into an open area where they found a gurney. PO Burgos threw § 87(2)(b) with force against the gurney. § 87(2)(b) landed on his face. PO Burgos did not say anything to § 87(2)(b) or gave him any instruction prior to throwing him onto the gurney. Right after, PO Burgos turned § 87(2)(b) over and § 87(2)(b) asked him to remove the handcuffs. A doctor allegedly instructed PO Burgos to remove the handcuffs from § 87(2)(b) which PO Burgos did, and PO Burgos then walked away.

During his CCRB interview, PO Burgos explained that they entered the Emergency Room and handed § 87(2)(b) over the hospital staff (**Board Review 10**). PO Burgos did not remember how far into the hospital he went with § 87(2)(b) before the hospital staff took charge of § 87(2)(b)'s care. PO Burgos did not remember if there was any conversation with the medical staff in regards to § 87(2)(b)'s demeanor. PO Burgos denied pushing § 87(2)(b) as they walked into the hospital. PO Burgos denied pushing § 87(2)(b) in any way. PO Burgos was given a synopsis of what allegedly transpired at the hospital and PO Burgos denied using any type of force against § 87(2)(b) at the time.

During her CCRB interview, PO Cevallos explained that she drove the RMP to § 87(2)(b) as PO Burgos went inside the ambulance with § 87(2)(b) (**Board Review 11**). Upon arriving at the hospital, PO Burgos and PO Cevallos entered the hospital with § 87(2)(b). The officers then handed § 87(2)(b) over the hospital staff. PO Cevallos did not recall where in the hospital they stopped their interactions with § 87(2)(b). Right after, the officers exited the hospital and went back to patrol. PO Cevallos did not know if there was any physical struggle between PO Burgos and § 87(2)(b). PO Cevallos denied seeing PO Burgos use force against § 87(2)(b) at the hospital.

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 18**).
- PO Burgos has been a member of service for 2 years and has been a subject in 3 CCRB complaints and 5 allegations, of which 1 was substantiated.
 - CCRB case number 202007635 involved a substantiated allegation of property damage against PO Burgos. The Board Recommended command discipline B and the NYPD has not yet imposed discipline. § 87(2)(g)
- PO Cevallos has been a member of service for 7 years and has been a subject in 3 CCRB complaints and 5 allegations, none of which has been substantiated. § 87(2)(g)
- PO Avila has been a member for 3 years and has been a subject in one CCRB complaint and 2 allegations, none of which has been substantiated. § 87(2)(g)
- PO Rivera has been a member for 6 years and a subject in 1 CCRB complaints and 1 allegation, none of which has been substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of July 6, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**Board Review 19**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 9

Investigator:	<u>Juan Arango</u>	<u>Inv. Juan Arango</u>	<u>08/04/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Wassim Abedrabbo</u>	<u>Wassim Abedrabbo</u>	<u>08/04/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date